

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 14 - 011

**To Amend Chapter 4, Title 1 of the Code of the Chickasaw Nation
The Great Seal of the Chickasaw Nation**

- WHEREAS,** in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and
- WHEREAS,** in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and
- WHEREAS,** the use of the Great Seal of the Chickasaw Nation is reserved by law to the government of the Chickasaw Nation, except where authorization is given by the Chickasaw Tribal Legislature to persons and entities outside the government; and
- WHEREAS,** Chapter 4, Title 1 of the Code of the Chickasaw Nation provides for the extension of authority to certain individuals; and
- WHEREAS,** an ambiguity exists in the language of certain sections of Chapter 4, Title 1 of the Code of the Chickasaw Nation.

NOW, THEREFORE, BE IT RESOLVED, that Chapter 4, Title 1 of the Chickasaw Nation is hereby amended as follows:

- Section 1-406 is hereby repealed in its entirety. The following section shall be added:

**"SECTION 1-406A USE OF SEAL RESTRICTED TO GOVERNMENTAL
ACTIVITIES - EXCEPTIONS.**

Any and all rights of the use of the Great Seal of the Chickasaw Nation are reserved to the Nation, as established in the Constitution, in the course of governmental activities. However, approval for the use of any sort of reproduction of the Seal may be granted by the Legislature to an entity, person or organization which is outside of or not a part of the tribal government upon being petitioned for such use. Such approval shall be obtained before the Seal is put to any use by any such entity, person or organization."

Permanent Resolution 14-011

Page 2

- 1-407 is hereby repealed in its entirety. The following section shall be added:

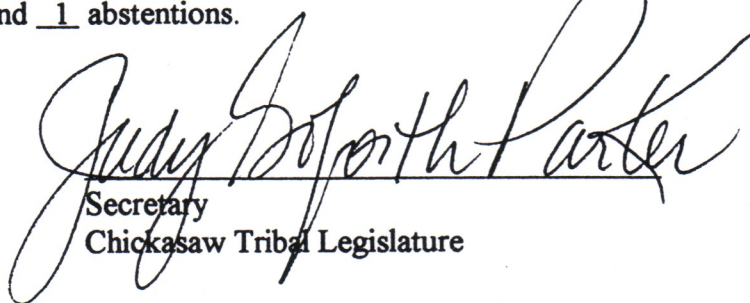
"SECTION 1-407A SEAL NOT TO BE REPRODUCED OR USED WITHOUT APPROVAL."

The use of the Seal in any manner whatsoever, or the reproduction or display thereof, by any entity, person or organization outside the tribal government, without the express written approval and permission of the Legislature, is prohibited."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 16, 1997, by a vote of 10 ayes, 1 nays, and 1 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:  _____ Date: **APR 16** 1997
Bill Anoatubby, Governor
The Chickasaw Nation

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 14 - 011

**To Amend Chapter 4, Title 1 of the Code of the Chickasaw Nation
The Great Seal of the Chickasaw Nation**

Explanation: This resolution clarifies the meaning of Chapter 4, Title 1 of the Code of the Chickasaw Nation by deleting Sections 1-406 and 1-407 and adding Sections 1-406A and 1-407A. The language of the new sections provides that any entity, person or organization outside the Chickasaw tribal government must obtain authority and permission from the Legislature before displaying the Seal or a picture of the Seal.

Requested by: 'Rena Duncan

Presented by: Lisa Shephard, Chairman
Legislative Committee